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ZERODOCS.COM, INC

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

THE CONSTRUCTION SPECIFICATIONS INSTITUTE, INCORPORATED, a Maryland corporation,

Plaintiff,

vs.

ZERODOCS.COM, INC., a Minnesota corporation,

Defendant.

Case No. 8:25-CV-475-JWH-JDE

The Honorable John W. Holcomb

DECLARATION OF ADAM SCHWEGEL IN SUPPORT OF DEFENDANT ZERODOCS.COM'S MOTION FOR ATTORNEY FEES AND COSTS

Hearing Date : Friday, **16-OCT-2026**
Hearing Time : 9:00 AM
Location : Ronald Reagan Federal Bldg. & U.S. Courthouse
Courtroom 9D, 9th Floor
411 West Fourth Street
Santa Ana, CA 92701-4516

I, Adam Schwegel, hereby state and declare as follows:

1. I am the owner of the defendant in this action, Zerodocs.com, Inc. ("Zerodocs").

2. I submit this declaration in support of Defendant Zerodocs' motion for attorney fees and costs.

3. I have personal knowledge of the facts stated in this declaration and can and will competently testify to them if called upon as a witness.

Zerodocs and SimpleSpecs

4. Zerodocs.com, Inc. ("Zerodocs.com"), is a two-person company company that my wife – Kellie Schwegel – and I started in Minnesota, in 2012.

5. In February 2019, Zerodocs started to distribute a product called "SimpleSpecs."

6. SimpleSpecs specification templates are a series of Microsoft word documents organized to MasterFormat codes for architects to create bid documents for construction projects. It was intended to provide a low-cost alternative to expensive SaaS specification offerings, primarily for customers with small architectural practices.

7. Zerodocs has never distributed books, educational programs, or services to compete with CSI.

8. In August 2018, we moved Zerodocs to Irvine, California, where it has operated continuously until the present.

Zerodocs' First Contact with CSI

9. In 2019, I viewed a video posted to YouTube (https://www.youtube.com/watch?v=Uehovw8EleQ&t=727s) apparently showing CSI's president stating that CSI "owns" the space on how construction communication is organized.

10. On October 13, 2022, CSI launched "Crosswalk" a subscription software service. I believed it to be CSI's intended replacement for the printed MasterFormat books and digital file. I understood CSI to be positioning Crosswalk as the only CSI-authorized MasterFormat software.

11. Attached as **Schwegel Exhibit 1** is a true and correct copy of a October 13, 2022 press release from CSI regarding "Crosswalk."

12. In 2022, CSI published, on its website, a FAQ stating that "MasterFormat does not contain specifications or specification templates."

13. Attached as **Schwegel Exhibit 2** is a true and correct copy of the FAQ, with the relevant statement highlighted.

14. These two exhibits confirm my understanding that the SimpleSpecs template product does NOT compete with the CSI MasterFormat, but that CSI is or was intending to sell a product called "CrossWalk" that would be competitive with the SimpleSpecs template product.

15. On February 28, 2022, Zerodocs received an email from a representative of Crosswalk. Attached hereto as **Schwegel Exhibit 3** is a true and correct copy of the email received.

16. Zerodocs received a letter dated February 8, 2023, from Attorney Paul Jorgensen on behalf of CSI, addressed to my business partner and wife, Kellie Schwegel, in California. A true and correct copy of that letter is attached hereto as **Schwegel Exhibit 4.** The letter states, in part:

> CSI owns and uses the trademarks CSI®, MASTERFORMAT® and other related trademarks and trade names, and the copyrighted works MasterFormat and other related works (collectively "CSI Properties") …. CSI permits others to use the CSI Properties only under written license agreements … CSI determined that your Zerodocs.com, Inc. ("Zerodocs") uses the CSI properties in Zerodocs products and on the Zerodocs website without authorization from or a license agreement with CSI …. Zerodocs's unlicensed use constitutes infringement, dilution and unfair

competition in violation of the Lanham Act, 15 U.S.C. § 1114, 1125(a), (c), and state law.

17. In response to CSI's February 8, 2023, letter, Zerodocs immediately removed all references to "CSI" or "MasterFormat" from its webpages, footers and verified all blog posts attributed CSI.

The Virginia Lawsuit

18. On October 26, 2023, CSI filed a lawsuit against Zerodocs in Virginia, under the caption, The Construction Specifications Institute, Incorporated v. Zerodocs.com, Inc., No. 1:23-CV-1457-PTG-LRV (E.D. Va. filed Oct. 26, 2023). The Virginia Complaint contains claims for copyright infringement (17 U.S.C. § 501), unfair competition (15 U.S.C. § 1125(a)(1)(A), trademark infringement (15 U.S.C. § 1117), and trademark dilution (15 U.S.C. § 1125(c)). A true and correct copy of the complaint ("Virginia Complaint") is attached hereto as **Schwegel Exhibit 5**.

19. Attached hereto as **Schwegel Exhibit 6** is a true and correct copy of the Virginia lawsuit's docket report, which was printed from the PACER website on September 8, 2026.

20. By December 12, 2023, Zerodocs placed notices at the bottom of its public-facing webpages disclaiming any affiliation with CSI or ownership of the MasterFormat system: "MasterFormat numbers and titles are owned by CSI and does not imply any connection with or endorsement by CSI."

21. Attached hereto as **Schwegel Exhibit 7** is a true and correct copy of the disclaimer as posted on Zerodocs' website. (Redactions in the exhibit conceal privileged and confidential attorney-client communications.) The automatically-generated file name for the screenshot shows the date it was taken: December 22, 2023.

22. On May 24, 2024, apparently after serving the Virginia Secretary of

State, CSI obtained entry of default and moved for default judgment.

23. When Zerodocs' California-based intellectual-property counsel, Mandana Jafarinejad – with whom CSI had been in communications since November 2023 – learned from CSI about that motion, she communicated Zerodocs' intent to oppose the motion to CSI in writing. Attached hereto as **Schwegel Exhibit 8** is a true and correct copy of the affidavit Attorney Mandana Jafarinejad submitted to the Virginia court by Zerodocs' attorney setting forth the sequence of communications.

24. I later learned and now understand that CSI neither filed that writing with the Virginia district court nor otherwise communicated Zerodocs' opposition to default judgment to that court.

25. Attached hereto as **Schwegel Exhibit 9** is a true and correct copy of the minutes from the June 14, 2024, Virginia district court hearing on CSI motion for default judgment. The minutes indicate that the court understood CSI's motion for default judgment to be "uncontested."

26. In June 2024, Zerodocs expanded notices of non-affiliation with CSI to include the following language in the "Terms and Conditions" notice posted on its website: Zerodocs is in no way affiliated with or endorsed or sponsored by Construction Specifications Institute, Inc."

27. Attached hereto as **Schwegel Exhibit 10** is a true and correct screenshot of the "Terms and Conditions" disclaimer of affiliation. The printout, with a red box I drew around the disclaimer on the second page of the printout for the Court's reference, was made preparation for the filing of this motion, but the disclaimer has been in place since June 2024.

28. Zerodocs retained counsel to appear in Virginia.

29. On June 24, 2024, Zerodocs, through counsel, moved to set aside default. Because CSI opposed, Zerodocs was obligated to litigate the motion fully.

30. On July 15, 2024, Zerodocs filed a reply brief in support of its motion.

31. On July 19, 2024, the Virginia district court issued an order granting Zerodocs' motion to set aside default. The court also denied CSI's motion for default judgment as moot.

32. Attached hereto as **Schwegel Exhibit 11** is a true and correct copy of the court's July 19, 2024 order.

33. In that order, the court allowed CSI to file a request for an award of attorneys' fees but limited the motion to cover fees spent "in relation to the Motion for Default Judgement only." The court underscored the word "only."

34. On July 29, 2024, Zerodocs filed a motion to dismiss the Virginia complaint for lack of personal jurisdiction. Attached hereto as **Schwegel Exhibit 12** is the affidavit I submitted to the Virginia federal district court confirming that Zerodocs has no contacts with Virginia.

35. Because CSI opposed the motion to dismiss, Zerodocs had to litigate that motion fully.

36. On August 15, 2024, Zerodocs filed a reply brief in support of its motion to dismiss.

37. In the meantime, on August 1, 2024, CSI filed its motion for attorney fees. In spite of the court's July 19, 2024 order limiting CSI to a motion for fees related to its motion for default judgment only, CSI's motion sought to recover fees for both its motion for default judgment ***and*** its motion opposing Zerodocs' motion to set aside default.

38. Attached hereto as **Schwegel Exhibit 13** is a true and correct copy of CSI's motion for more fees than the court's order permitted.

39. Zerodocs opposed CSI's motion for extra fees and filed an opposition.

40. Attached hereto as **Schwegel Exhibit 14** is a true and correct copy

of Zerodocs' filed opposition brief.

41. At the hearing on Zerodocs' motion to dismiss, the court dismissed the complaint from the bench.

42. Attached hereto as **Schwegel Exhibit 15** is a true and correct copy of the minutes from the Virginia hearing on the motion to dismiss.

43. Attached hereto as **Schwegel Exhibit 16** is a true and correct copy of the order dismissing the Virginia Complaint dated August 29, 2024.

Licensing Negotiations Prior to CSI's Refiling in California

44. On September 13, 2024, CSI's lawyer emailed Zerodocs' counsel a draft agreement that offered to license "the MASTERFORMAT® trademark and the copyrighted MasterFormat works" to Zerodocs for two years at $5,000 a year provided that Zerodocs pay $10,000 upfront and submit to personal jurisdiction of Virginia.

45. The ***cover email*** demanded other terms: (a) after the first two years, Zerodocs was to pay different rates "based on CSI policy and Zerodocs' gross revenue"; and (b) Zerodocs was to pay CSI $45,000 immediately to cover CSI's attorney fees to date.

46. On September 30, 2024, CSI's counsel emailed Zerodocs' counsel and wrote:

> I wanted to get back with you to see if your client had any reaction to our settlement demand. ***We've now retained California counsel, so that lawsuit is going to go forward unless we resolve it***. Plus, his rates are higher than mine: if CSI is successful on the Lanham Act claim, ***that could get expensive for Zerodocs***.

(emphasis added).

47. That same day, September 30, 2024, Zerodocs, through counsel, countered by offering a $2000 for a one-year licensing agreement with the

option — but not the obligation — to renew at that rate and no obligation to open Zerodocs' books to CSI.

48. Attached hereto as **Schwegel Exhibit 17** is a true and correct copy of the email chain showing, in reverse chronological order, CSI's September 30, 2024 email responding to the earlier September 13, 2024 email and attached draft license "Attachment A - for MasterFormats approved use within Zerodocs's construction spec writing software product SimpleSpecs"; both are in the exhibit. Redactions at the top cover only Zerodocs' attorney-client communications and attorney work product.

49. Zerodocs also offered to terminate its SimpleSpecs software service without payment of money to CSI. Attached hereto as **Schwegel Exhibit 18** is a true and correct copy of the Oct. 15, 2024 email from Zerodocs' attorney to CSI's counsel making this offer.

50. CSI responded by offering two options:

a. Option 1: Either Zerodocs "enter into a standard CSI license agreement going forward at the start-up-company rate of $5,000" with a release of prior claims; or

b. Option 2: Zerodocs stops use of CSI "material and property," pay $15,000, and "acknowledge that the MasterFormat trademarks and copyright materials are exclusively owned by CSI."

51. A true and correct copy of the October 25, 2024 email from CSI's counsel setting forth this response is attached hereto as **Schwegel Exhibit 19**, with redactions only of attorney-client communications and attorney work product.

52. By November 11, 2024, Zerodocs ceased offering the SimpleSpecs software, and informed CSI of this in writing. On that basis, Zerodocs declined CSI's offers either to license or pay to settle. Attached hereto as **Schwegel Exhibit 20** is a true and correct copy of the November 11, 2024 email Zerodocs'

attorney sent to CSI's attorney stating this.

California Proceedings

53. Plaintiff deposed me, my business partner and wife Kellie Schwegel, and the SimpleSpecs creator Craig Haney.

54. Defendant produced approximately 50,000 documents and obligated us to gather and produce our own business records.

I declare, under penalty of perjury of the laws of the United States of America, that the foregoing is true and correct.

Date: September 15, 2026

/s/ *Adam Schwegel*
Adam Schwegel